

SENATE BILL 1435

By Haile

AN ACT to amend Chapter 67 of the Private Acts of 1953; as amended and rewritten by Chapter 88 of the Private Acts of 1969; Chapter 393 of the Private Acts of 1972; Chapter 300 of the Private Acts of 1974; Chapter 70 of the Private Acts of 1975; Chapter 97 of the Private Acts of 1981; Chapter 48 of the Private Acts of 1999; Chapter 4 of the Private Acts of 2009; Chapter 30 of the Private Acts of 2014; and any other acts amendatory thereto, relative to the City of Gallatin.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 67 of the Private Acts of 1953, as amended and rewritten by Chapter 88 of the Private Acts of 1969, Chapter 393 of the Private Acts of 1972, Chapter 300 of the Private Acts of 1974, Chapter 70 of the Private Acts of 1975, Chapter 97 of the Private Acts of 1981, Chapter 48 of the Private Acts of 1999, Chapter 4 of the Private Acts of 2009, Chapter 30 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article II, Section 1, by adding the following as a new subdivision:

(41) Impact fees. The City Council shall have full power and authority to impose such fees on persons or entities developing land within the corporate limits as the city deems appropriate to pay the costs of capital improvements and other expenses related to such developments, including but not limited to improvements and expenses for street repair and construction, traffic signals, water services and/or facilities, stormwater and drainage facilities, storm drainage ditches, storm drainage sewer pipes, emergency services, and/or disposal, and the providing of administrative services for the foregoing.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Gallatin. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.